

**Before the
Federal Maritime Commission**

Docket No. 24-17

Samsung Electronics America, Inc.

v.

Orient Overseas Container Line, Limited and OOCL (Europe) Ltd.

v.

Samsung Electronics Co., Ltd.

**RESPONDENTS' RESPONSE TO COMPLAINANT'S (MIS-STYLED)
MOTION FOR A STATUS CONFERENCE**

On September 23, 2025, Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) filed a motion captioned “Complainant’s Motion for Enlargement of Time” (“Motion”).¹ Caption notwithstanding, the Motion does not request a particular extension to the discovery schedule. Instead, it seeks a status conference at which the Parties and the Presiding Officer will discuss and apparently decide on an extension of some unknown length.

Orient Overseas Container Line Limited and OOCL (Europe) Ltd. (“OOCL” or “Respondents”) do not object to a status conference if the Presiding Officer thinks it useful. We would be happy to discuss the fact that Respondents have finished producing documents – some 43,000 of them – while Complainant has produced none, as well as the reasons for Complainant’s

¹ We wish to emphasize that Respondents are filing this Response one day early, in advance of a potential government shutdown, and that it is based on the status of discovery as it stands today at 5:00 p.m.

failure to meet its discovery obligations. At 3:49 p.m. today, SEA's counsel advised that they are running a production and expect to have "our first tranche of documents over to you tomorrow afternoon." While fulfillment of that representation remains to be seen, it does not mitigate the prejudice to OOCL which we describe below.

Respondents object to any discussion of a possible extension at the conference proposed by SEA. That is a "speaking" motion, prohibited by the FMC Rules except at a formal hearing. 46 C.F.R. 502.69(b) ("Motions ***must*** be in writing, except that a motion made at a hearing may be sufficient if stated orally upon the record") (emphasis added). Furthermore, Complainant has failed to confer with Respondents about any specific extension, much less a revised schedule for the remainder of the proceeding.

Respondents are entitled by the FMC Rules and due process to an opportunity to file a meaningful response (46 C.F.R. 502.69(f)), but cannot do so when faced with such a vague and non-specific request for relief. *See* 46 C.F.R. 502.69(e) ("motions must state clearly and concisely the purpose of and the relief sought by the motion"). As a general matter, Respondents object to anything more than a *de minimis* extension (no more than seven days) and are entitled to a firm deadline by which SEA must complete its document production in a case that it filed more than eighteen months ago. Complainant to date has been extremely deficient and untimely in fulfilling its obligation to respond to Respondent's discovery requests, even assuming that it delivers the "first tranche" tomorrow. Apart from document production, at issue here, Complainant's responses to Interrogatories were grossly inadequate, although the parties are attempting to resolve those deficiencies without the need to file a motion to compel.

Not only has Complainant failed to proffer good cause (or any cause at all) for its failure to produce documents, it has also ignored the substantial prejudice that would accrue to Respondents

from an extension. As stated above, Complainant already has *all* of the documents from Respondents, but Respondents have none of Complainant's documents. That means Complainant is free to review Respondents' documents and prepare for depositions of Respondents' witnesses, while Respondents can do nothing but wait idly for Complainant's documents. The longer Complainants are allowed to defer producing their documents, the greater the prejudice.²

SEA's vague explanations of why it requires an extension are unsupported by any detail, and they appear to be makeweights. SEA states that an extension is warranted by the volume of data "necessary to prove and/or defend the allegations in this matter..." Respondent, faced with the same volume of data, completed its review, marshaled and produced all of its documents timely. It appears Complainant has been stalling, hoping to achieve an unlikely settlement without having to spend time and money on discovery production (as Respondents have done). The similar assertion that "good cause" arises from the large number of charges alleged by SEA (Mot. at 3), is likewise inconsistent with the fact that Respondents have managed not just to commence, but actually to complete, production of documents in the same time it took SEA to do nothing.³ The fact that SEA counsel does not know what information it has about so many of its claims raises questions about a complaint as to which counsel has certified that they have concluded, "after reasonable inquiry," that each claim is "well grounded in fact." 46 C.F.R. 502.6(a). SEA asserts that additional time will allow the parties to narrow or eliminate discovery disputes. But that is a day late and a dollar short, as it may save SEA time and expense, but Respondents have already produced all discovery (at

² Of course the dates for depositions could be substantially extended (along with everything thereafter), so that Respondents will have an adequate opportunity to prepare, but that would also extend the already longer preparation time available to Complainant. We see no good reason why Respondents should be punished for Complainant's conduct.

³ We note that SEA has reported in Docket No. 24-16, a proceeding involving vastly more claims, that it was able to produce over 2 million pages of documents within the time permitted. SEA v. COSCO (Joint Motion for Extension of Time at p. 2 (Sept. 5, 2025).

significant effort and expense), so would derive no benefit. Moreover, Complainant's raising of this issue only at the last minute, without making any prior effort to narrow issues, rings hollow at best. Finally, SEA asserts that the time needed to narrow issues would be "modest," but offers no reason to believe that it is anything less than two-three months, which is our experience.

Even apart from the foregoing, it is unclear (and unstated) why SEA now requires additional time to gather documents that it should already have at its fingertips. OOCL first requested information about those charges in response to SEA's demand letter in October, 2022. Thus, there is no good cause shown for a last-minute extension.

CONCLUSION

For the reasons stated above, the Presiding Officer is welcome to order a status conference if he thinks it will be useful, but the issue of an extension may not be addressed unless and until Complainant files a motion in writing, requesting a specific extension, and Respondents are given an opportunity to respond.

Dated: September 29, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

RFenneman@JeffreyFenneman.com

Eric C. Jeffrey

EJeffrey@JeffreyFenneman.com

Kaya C. Massey

KMassey@JeffreyFenneman.com

Nicholas L. Webb

NWebb@JeffreyFenneman.com

700 12th St., NW, Suite 700

Washington, DC 20005

Tel. 202-904-2301

/s/ Christopher Raleigh
COZEN O'CONNOR LLP
Wayne Rohde
Wrohde@cozen.com
Christopher Raleigh
CRaleigh@cozen.com
Katheryn Sobotta
KSobotta@cozen.com
2001 M Street NW, Suite 500
Washington, DC 20036

Counsel for Respondents Orient Overseas Container Line, Limited and OOCL (Europe) Ltd.

CERTIFICATE OF SERVICE

I certify that on the 29th day of September, 2025, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

ATTORNEYS FOR COMPLAINANT:

MILLS BLACK LLP
1215 19th Street, NW
Washington, DC 20036

Peter Black
PBlack@MillsBlack.com

H. Allen Black
HABlack@MillsBlack.com

Imran Shaukat
IShaukat@MillsBlack.com

ATTORNEYS FOR THIRD PARTY RESPONDENT:

James H. Hohenstein
HOHENSTEIN & PARKINSON, LLP
385 South End Avenue, #5K
New York, NY 10280
Jim.Hohenstein@hplawnyc.com

/s/ Christopher Raleigh_____